

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #4	CCRB Case #: 201500346	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 01/13/2015 4:10 PM	Location of Incident: 73rd Precinct stationhouse	Precinct: 73	18 Mo. SOL 7/13/2016	EO SOL 7/13/2016	
Date/Time CV Reported Tue, 01/13/2015 5:48 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/16/2015 1:41 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Peter Lazare	26342	948374	073 PCT
2. An officer			073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Christopher Muller	04155	925795	073 PCT
2. POM Carlos Anton	06657	948621	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A. POM Peter Lazare	Abuse: PO Peter Lazare strip-searched § 87(2)(b)	
B. An officer	Force: An officer used physical force against § 87(2)(b)	

Case Summary

On January 13, 2015, Sgt. Christopher Muller of the 73rd Precinct filed this complaint with IAB via telephone on behalf of a prisoner, § 87(2)(b). On January 16, 2015, the complaint was forwarded to the CCRB via IAB log #2015-1004.

At approximately 4:10 p.m. on January 13, 2015, PO Peter Lazare and PO Carlos Anton of the 73rd Precinct arrested § 87(2)(b) in regards to § 87(2)(b). § 87(2)(b) was transported to the stationhouse for arrest processing. He was then escorted into a holding cell by PO Lazare. PO Lazare then instructed § 87(2)(b) to remove his pants (**Allegation A**). When § 87(2)(b) refused to do so, PO Lazare entered the cell and attempted to pull them down himself. § 87(2)(b) started shouting, and attempted to prevent PO Lazare from removing his pants by pulling them up. § 87(2)(b) also alleged that Sgt. Muller and PO Anton assisted in this struggle. At some point during this struggle, § 87(2)(b)'s right shoulder was dislocated. (**Allegation B**). The officers were then able to get § 87(2)(b)'s arms under control and remove his pants. Several plastic bags of marijuana were then recovered from inside of his underwear. § 87(2)(b) was then transported to § 87(2)(b) by EMS to obtain treatment for his dislocated shoulder.

Mediation, Civil and Criminal Histories

§ 87(2)(b)'s complaint is ineligible for mediation due to his arrest. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) (Encl. 12F-AC). A notice of claim request was submitted to the Comptroller's office on February 11, 2015, and will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- § 87(2)(b) is listed as a victim in CCRB case #§ 87(2)(b) § 87(2)(b) (Encl. 3A).
- PO Lazare has been a member of the service for five years, and there are no substantiated CCRB allegations against him. PO Lazare has never been the subject of a strip-search allegation (Encl. 2A).

Civilian Statements

§ 87(2)(b) (Encl. 6A-F)

- § 87(2)(b) was interviewed at the CCRB on January 29, 2015.
- § 87(2)(b) stated that he had been smoking marijuana shortly before his arrest, and that he smelled of marijuana during the incident. He denied being impaired. He also stated that he was concealing several bags of marijuana in his underwear.
- § 87(2)(b) was placed in an individual holding cell next to another prisoner, § 87(2)(b). Due to barriers between the cells, § 87(2)(b) and § 87(2)(b) were unable to see into each other's cell.
- After placing § 87(2)(b) in an individual holding cell, PO Lazare instructed him to remove his pants because he smelled of marijuana.

- When § 87(2)(b) refused to comply, PO Lazare entered the holding cell and attempted to pull the pants down himself. § 87(2)(b) resisted by holding up his waistband and yelling, “Get off me.”
- Sgt. Muller and PO Anton then entered the holding cell to assist PO Lazare. All three officers pulled § 87(2)(b) s arms behind his back. § 87(2)(b) continued to resist by shouting and holding up his waistband. No additional force was used at that time.
- During the struggle, § 87(2)(b) s right shoulder popped out of his socket. At the time, PO Anton was pulling on his right arm. He did not suffer any further injuries.
- Once he was restrained, PO Lazare pulled down § 87(2)(b) s pants and retrieved several bags of marijuana from his underwear.
- § 87(2)(b) was transported to § 87(2)(b), where his shoulder was reset and he was given painkillers.

NYPD Statements

PO PETER LAZARE (Encl. 8A-N)

- PO Lazare was interviewed at the CCRB on February 9, 2015.
- PO Lazare and PO Anton arrested § 87(2)(b) in regards to an earlier § 87(2)(b) § 87(2)(b)
- When the officers took § 87(2)(b) to the stationhouse for processing, PO Lazare noted that he smelled of marijuana. He did not, however, appear to be impaired in any way.
- PO Lazare conducted an initial frisk at the front desk before escorting § 87(2)(b) to the holding cell. Once § 87(2)(b) was in the holding cell, PO Lazare searched through his pants and jacket pockets.
- During the search in the cell, a bag of marijuana fell out of § 87(2)(b) s pants. PO Lazare did not recall what specific part of § 87(2)(b) s pants that the bag came from. He denied reaching inside of § 87(2)(b) s waistband or removing his clothing before that point.
- Based upon this first bag of marijuana, PO Lazare suspected that § 87(2)(b) was concealing further contraband on his person. As such, he removed § 87(2)(b) s pants to check them for additional bags. § 87(2)(b) s underwear was exposed as a result of this action.
- PO Lazare did not consider this action to be a strip-search. He stated that during a formal strip-search, prisoners are ordered to squat down and shake out any loose items held on their person. Since § 87(2)(b) was not given this order, PO Lazare did not feel that his actions constituted a strip-search. He therefore did not discuss this search with Sgt. Muller or any other officers at any point.
- § 87(2)(b) attempted to prevent PO Lazare from pulling down his pants by grabbing at the officer’s arm. PO Lazare was able to hold § 87(2)(b) s arms back and complete the search, retrieving several additional bags of marijuana. § 87(2)(b) s underwear was exposed as a result of this action.
- PO Lazare held § 87(2)(b) s arms back for about two minutes. He denied using any additional force. During that time, § 87(2)(b) s right shoulder became dislocated. PO Lazare did not know how this injury was sustained, but recalled § 87(2)(b) later stating that his arm often pops out of its socket.
- Sgt. Muller and PO Anton entered the holding cells a short time later, after the struggle and the search had concluded. Neither made any physical contact with § 87(2)(b) at any point.

ADDITIONAL OFFICERS

- PO Anton was interviewed at the CCRB on February 18, 2015 (Encl. 9A-D).
- Sgt. Muller was interviewed at the CCRB on March 2, 2015 (Encl. 10A-F).
- While PO Anton was present with PO Lazare during the initial arrest, Sgt. Muller was not. Sgt. Muller first encountered § 87(2)(b) at the stationhouse.
- Both officers were performing administrative duties while PO Lazare lodged § 87(2)(b). Both denied witnessing either any struggles or searches in the holding cell area. Sgt. Muller and PO Anton both denied making physical contact with § 87(2)(b) at any point.
- PO Anton did not know where on § 87(2)(b)'s person PO Lazare recovered the marijuana from, or how it had been discovered. PO Lazare later informed Sgt. Muller that the marijuana had been somewhere in § 87(2)(b)'s pants, but did not specify where.
- Neither Sgt. Muller nor PO Anton was not aware of any strip-searches being conducted on § 87(2)(b). They denied that there was any conversation about conducting one.

Potential Issues

- § 87(2)(b) declined to sign a medical release form. His medical records therefore could not be obtained.
- § 87(2)(b) provided § 87(2)(b) address during his initial complaint. A Lexis Nexis search revealed no further contact information for him. Please-call letters were mailed to § 87(2)(b) on March 4, 2015 and March 9, 2015. To date, § 87(2)(b) has not responded to these contact attempts.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that PO Lazare, Sgt. Muller and PO Anton were all involved in the struggle in the holding cell. He further stated that PO Anton was holding onto his right arm when it became dislocated. All three officers stated that PO Lazare was the only officer in the cell with § 87(2)(b) at the time of the injury. PO Lazare specifically identified himself as the only officer making contact with § 87(2)(b) at the time of the injury. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A - Abuse of Authority: PO Peter Lazare strip-searched § 87(2)(b)

It is undisputed that § 87(2)(b)'s pants were removed in the holding cell. While PO Lazare considered this to be part of a standard search, the fact that § 87(2)(b)'s underwear was exposed elevates the action into a strip-search. The strip-search was conducted in an individual holding cell. No other prisoners were in the holding cell with § 87(2)(b).

§ 87(2)(b) stated that PO Lazare told him that the strip-search was conducted because he smelled of marijuana. While PO Lazare confirmed that § 87(2)(b) smelled of marijuana, he stated that he decided to remove § 87(2)(b)'s pants only after a bag of marijuana fell out of an unspecified area of the pants. Both Sgt. Muller and PO Anton denied any knowledge of a strip-search being conducted. All three officers stated that there was discussion amongst them about

whether to conduct a strip-search. PO Lazare did not obtain permission from Sgt. Muller or any other supervisor before conducting the strip-search.

A strip-search may be conducted when an officer possesses a reasonable suspicion that a prisoner is concealing evidence underneath clothing, provided that the strip-search is conducted in a “reasonable manner.” People v. Anderson, 2013 N.Y. App. Div. LEXIS 1394 (App. Term, 3rd Dept. 2013) (Encl. 1A-C). NYPD Patrol Guide procedure 208-05 requires that strip-searches be approved by a supervisor, and that they be conducted in a secure and private location by a uniformed officer (Encl. 1D-F).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation B – Force: An officer used force against § 87(2)(b)

It is undisputed that § 87(2)(b) s right shoulder was dislocated during a struggle in the holding cell. It is also undisputed that § 87(2)(b) was resisting arrest by shouting and trying to hold up his pants. § 87(2)(b) stated that all three officers were involved in the struggle, and that PO Anton was holding his right arm at the time of the injury. All three officers stated that PO Lazare was the only officer involved in the struggle.

NYPD Patrol Guide procedure 203-11 states that officers are empowered to use limited force in order to overcome a subject’s resistance (Encl. 1G-H).

§ 87(2)(g)

[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date